

| #   | Case Name                                                      | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
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| 57. | Flores v. Hyundai Motor America<br><br>2023-01343056           | <p>Plaintiff Sidney Flores' motion for attorney fees is DENIED.</p> <p>The moving papers do not identify any amount of fees sought, nor provide any evidence as to the time incurred, or how any claimed time incurred was reasonable or necessary. (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 49 [party seeking attorney fees has the burden of proof as to the reasonableness and necessity of same]; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1320 [party seeking attorney fees "bear[s] the burden of establishing entitlement to an award and <u>documenting</u> the appropriate hours expended and hourly rates ... [t]he <u>evidence</u> should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended;" emphasis added, internal citation omitted].)</p> <p>The court observes that moving party's counsel has filed two previous fee motions, which also suffered from evidentiary deficiencies. (ROA 56, 58, 59 [first fee motion, denied without prejudice 11-10-26]; ROA 64, 66 [second fee motion, withdrawn by moving party].)</p> <p>The court declines to consider plaintiff's "Notice of Errata" (ROA 98) addressing this issue, which was not filed until 8-3-26, after defendant had filed an opposition. (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [court's discretion to refuse to consider late-filed papers]; <i>Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [same]; see also <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new evidence presented for the first time on Reply is not considered, unless the opposing party has notice and an opportunity to respond].)</p> <p>Defendant shall give notice of this ruling.</p> |
| 58. | Martinez v. American Honda Motor Co. Inc.<br><br>2024-01419984 | <p>Plaintiff Eudardo Martinez' Motion for Attorney Fees is GRANTED.</p> <p>Defendant argues that Plaintiff's motion is not timely filed, pursuant to Cal. Rules of Court, Rule 3.1702, subd. (b)(1). Defendant argues that at the latest, Plaintiff had until 5/13/26 to file this motion, consisting of 180 days from the entry of the dismissal of this action on 11/14/25.</p> <p>The court does not have to reach that issue, as the court finds good cause to extend any time to file under Rules of Court, Rule 3.1702(d). ("For good cause, the trial judge may extend the time for filing a motion for attorney's fees in the absence</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |